



Registration and Stamp Department

Madhya Pradesh

Certificate of Stamp Duty

E-Stamp Details

E-Stamp Code 01011416122024011385
Total E Stamp Amount 1000
Govt. Stamp Duty (Rs.) 1000
Janpad Duty (Rs.) 0
Exempted Amount (Rs.) 0
Municipality Duty (Rs.) 0
Upkar Amount (Rs.) 0
E-Stamp Type NON-JUDICIAL
Issue Date & Time 16/12/2024 17:34:18
Service Provider or Issuer Details VISHAL VERMA/SP011441511202300015
SP/SRO/DRO/HO Details 120 KAILASH VIHAR, CITY CENTRE GIRD(GWALIOR) GWALIOR

Deed Details

Deed Type Agreement or Memorandum of an agreement
Deed Instrument If relating to the sale of bill of exchange. - One rupee for every rupees 10,000 or part thereof.
Purpose LEASE RENT

First Party Details

Organization Name M/S SWASTIK GRAH NIRMAN
Address GWALIOR GWALIOR Madhya Pradesh INDIA
Number of Persons 1

Second Party Details

Organization Name CARS24 SERVICE PVT LTD
Address AUTHORISE-SHASHANK TEWARI ADD.-10th FLOOR TOWER B UNITECH CYBER PARK SECTOR 39,GURUGRAM (HARYANA)-122001 GWALIOR Madhya Pradesh INDIA
Number of Persons 1

Digitally signed by VISHAL VERMA
Date: 2024.12.16 17:34:20
IST



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Lease Rent

This lease Rent ("Lease Rent") is made and executed on the date as elaborated in Schedule I ("Execution Date").

By and Between

M/S- Swastik Grah Nirman having it's registered office at Gwalior (hereinafter referred to as the "Lessor", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the first part;

And

Cars24 Services Private Limited, through it's authorized representative Mr Shashank Tewari (Aadhar 4149-4512-4286), a company incorporated under the provisions of the Companies Act, 2013 and having its registered office at 10th Floor, Tower B, Unitech Cyber Park, Sector 39, Gurugram, 122001, Haryana, (hereinafter referred to as the "Lessee", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the other part.

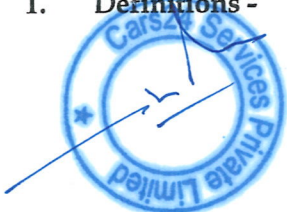
The Lessor and the Lessee are hereinafter collectively referred to as the "Parties" and individually as a "Party".

Whereas:

- A The Lessor represents and warrants that it is the absolute owner and in absolute possession of the land ad measuring. shed area of **4800 sq. ft carpet area** with an open area of **NA s q. ft** plus exclusive dedicated parking space of **NA sq. ft.** (subject to actual measurement(s) square feet situated at Gwalior and more fully described in Schedule I herein ("Premises").
- B The Lessee is a company engaged in the business of sale, purchase and refurbishment of the pre- owned/used vehicles through its online platform and other offline means and has approached the Lessor with a request to take on lease the total constructed area being shed area of **4800 carpet area** with an open area of **NA s q. ft** plus exclusive dedicated parking space (If Applicable) **NA s q. feet** from t he Lessor for its business use and more fully described and demarcated in the site layout plan attached in **Schedule I** herein.
- C In consideration of the Lease rent agreed to be paid by the Lessee, the Lessor has agreed to lease the Premises to Lessee. The Lessor having represented that it has the necessary permission to lease the Demised Premises to the Lessee and believing such representation made by the Lessor to be true, the Lessee has agreed to take on lease the Demised Premises and enter into this Lease Deed, subject to terms and conditions detailed herein.
- D The Parties have agreed to record in writing their mutually agreed terms and conditions of this Lease in Demised connection with the Premises as hereinafter appearing.

Now therefore, in consideration of the mutual promises, covenants and conditions as contained in this Lease Deed, the Parties hereto agree as follows:

1. Definitions -



In this Lease Rent, unless repugnant to the context, the following terms shall have the following meanings:

- a. **Applicable Law** means and includes any applicable central, state or local law, statute, ordinance, rule, regulation, code, bye-law, government order or direction, judgement, decree or order of a judicial, quasi-judicial, statutory, regulatory or any other authority
- b. **Arbitration Act** means the Arbitration and Conciliation Act, 1996;
- c. **Arbitral Tribunal** shall have the menaing as ascribed to in Clause 16 (a).
- d. **Common Areas** include stair-ways, lobbies, common toilets, garden areas, lift shafts, and other areas designated as "common areas" including the basement, areas designated for the keeping and collecting of refuse, fire staircase, sidewalks, driveways, service driveways, terraces, elevators, refuge areas, staircase (subject to applicability), to which access would be required in relation to the Lessee's unrestricted and unfettered use, enjoyment and possession of the Premises;
- e. **Execution Date** means the date of execution of this Rent;
- f. **Extended Term** has the meaning ascribed to it in clause 4(b);
- g. **Fit-out** includes any and all alterations, additions, improvements, fixtures, fittings, electrical devices, technology and other equipment, systems, furniture, partitions, flooring, temporary walls, electrical devices, information technology and other equipment, systems counters, screens, sun blinds, geysers, telephones, flooring, cladding, carpeting, works partitions and panelling, doors, windows, storage cabinets, storage rooms furniture, modular furniture, civil works, steel works, interior signage, bathroom fittings and fixtures, overhead cable trays, and ceilings, etc., whether fixed or otherwise (subject to applicability);
- h. **Force Majeure** has the meaning ascribed to it in clause 19;
- i. **Governmental Approvals** means and includes all or any consents, permits, grants, license, rights, authorization, approvals, endorsements, extensions, renewals, no-objection certificates, exemptions, waivers and the like from any authority;
- j. **Indemnified Persons** has the meaning ascribed to it in clause 20;
- k. **Lease Term** has the meaning ascribed to it in clause 4(a);
- l. **LOI** has the meaning ascribed to it in clause 21 (d) (i);
- m. **New Owners** has the meaning ascribed to it in clause 14(a);
- n. **Wear and Tear** shall mean any damage done to the Premises excluding any structural damages resulting in weakening of its foundation/structure of the building or Premises, as the case may be.
- o. **Premises** has the meaning ascribed to it in Schedule I;
- p. **Rent** has the meaning ascribed to it in clause 6(a);
- q. **Rent Start Date/Commencement Date** has the meaning ascribed to it inin Clause 5(c) and Schedule I;
- r. **Security Deposit** has the meaning ascribed to it in clause 7(a);
- s. **TDS** has the meaning ascribed to it in clause 6(f); and

2. Interpretation

In this Rent:

- a. References to any statute or statutory provision or order or regulation made there under shall include that statute, provision, order or regulation as amended, modified, re-enacted or replaced from time to time whether before or after the date hereof.
- b. References to persons shall include body corporate, unincorporated associations, partnerships and any organization or entity having legal capacity.



- c. Headings to Clauses are for information only and shall not form part of the operative provisions of this Rent and shall not be taken into consideration in its interpretation or construction.
- d. References to Recitals, Clauses or Schedules are, unless the context otherwise requires, are references to recitals, clauses or schedules of this Lease Rent. Further, the recitals, clauses and schedules of this Lease Rent shall form a substantive part of this Rent.
- e. Unless the context otherwise requires, reference to one gender includes a reference to the other, words importing the singular include the plural and vice versa.
- f. References to the words "include" or "including" shall be construed as being suffixed by the term "without limitation".
- g. Reference to notices, consents, confirmations, or other communications between the Parties provided for in this Rent shall be construed to be in writing and in English language.

3. Grant of Lease and Handover of Premises

- a. The Lessor hereby grants, demises and leases unto the Lessee, the Premises for the Lease Term (defined below) and any extension thereof on the terms and conditions of this Rent.
- b. Pursuant to this Lease Rent, the Lessee shall have the right to the unrestricted and unfettered use and enjoyment of the complete Premise and the Common Areas at all times during the Lease Term.

4. Lease Term and Extension

- a. This Rent shall commence on and from the Execution Date shall continue to be in full force and effect between the Parties for a period as elaborated in Schedule I (**Lease Term**).
- b. The Lessee shall have the option to extend the lease of the Premises for another term as elaborated in Schedule I (such extended term succeeding the Lease Term shall be referred to as the **Extended Term**). In the event the Parties mutually agree to extend this lease beyond the Lease Term, the Lessor shall do all such acts and deeds as may be necessary for ensuring that the lease is renewed for the term beyond the Lease Term including execution of fresh lease Rent on identical terms and conditions and registration of the fresh lease Rent.

5. Handover of Possession and Fit-Outs

- a. The Lessor has handed over peaceful, vacant and physical possession of the Premises to the Lessee on the Execution Date.
- b. In case of any default in the said scope of work, Lessee shall possess unfettered rights to terminate this Rent with a notice of seven (7) days to the Lessor, in case the Lessor does not comply with the requirements of the Lessee as per the terms of this clause, the Lessor shall also be liable to pay to Lessee an amount equivalent to three (3) days of Rent with each day of delay in handover of Premises, without any liability of any nature whatsoever against the Lessee. However, the Lessor shall be liable to refund any amount payable or paid in advance by the Lessee in such case without any demur or protest.



- c. Lessee shall be liable to pay the Lease Rent in respect of Demised Premises to the Lessor from 60 (sixtydays) ("Rent Commencement Date") from the date of execution of this Rent. It is hereby clarified that the Lessee shall not be liable to pay the Lease Rent for the Fit Out Period. Further the Lessor agrees if it fails to complete its Scope of Work during the Fit Out Period then the Rent Commencement Date shall be extended till the date the Lessor's Scope of Work is completed by the Lessor or the Lessee. The Parties agree that the Lessee shall have the right to renovate or make improvements and install Fit-Outs to the Premises and make non-structural alterations to suit its business needs subject to applicable local laws and building regulations. The Lessee shall, prior to carrying out these improvement works and Fit-outs, inform the Lessor, seven (7) days prior to the commencement of these improvement works and installation of Fit-outs.

6. **Monthly Consideration**

- a. The Lessee hereby agrees to pay to the Lessor during the Lease Term, the "Rent" as elaborated in Schedule I in respect of the Premises.
- b. Lessor shall always comply with the Goods and Services Tax Act, 2017 including CGST (Central Goods and Service Tax), SGST (State Goods and Service Tax), UTGST (Union Territory Goods and Service Tax), IGST (Integrated Goods and Service tax) laws and relevant regulations as amended from time to time when raising invoices and/or other billing documents for the rent under this Rent. In case, any claim of input tax credit of GST by Lessee is denied due to any non-compliance of GST Act including as amended from time to time by Lessor, Lessee shall be entitled to withhold from payments any amount as may be required until such non-compliance is rectified completely by Lessor GST will be borne by Lessee.
- c. In furtherance of clause 6(b), if the Lessor does not fall within the purview of the Goods and Services Tax Act, 2017, the Lessor shall sign a declaration annexed as Schedule IV.
- d. Subject to clause above, the Lessee shall be obliged to pay Rent only after the Commencement Date. No Rent shall be payable with respect to the lease of the Premises for the Rent Free Period as elaborated in Schedule I.
- e. On and from the Commencement Date, the Rent shall be paid in advance prior to the 10th day of the English calendar month (in respect of which the Rent is due), and if such day is not a business day then on the immediately following business day, by way of NEFT payment.
- f. The Rent payable by the Lessee to the Lessor shall be subject to statutory tax deductions at source (TDS) at applicable rates. The Lessee shall issue a TDS certificate to the Lessor for all TDS deducted and the Parties agree that such certificate shall be issued in accordance with Applicable Law.
- g. It has been agreed by and between the Parties that the Rent shall increase in a manner as elaborated in Schedule I (**Rent Escalation**).
- h. The Lessor shall be granted access to the online portal of the Lessee for submission of the monthly invoices by the Lessor. The Lessor shall submit all its invoices for Rent or other expenses via said portal only. The Lessee's obligation of payment shall arise from the date of receipt of a valid invoice from the Lessor via said online portal.



7. Interest Free Security Deposit

- a. The Lessor acknowledges that the Lessee has paid an interest free security deposit (**Security Deposit**) as elaborated in Schedule I.
- b. The Security Deposit shall be refunded by the Lessor to the Lessee without any interest thereon, within ten (10) days:
 - i. if this Rent is not notarized within ten (10) days from the Execution Date;
 - ii. upon expiry or early termination of the lease in accordance with the terms hereof, subject to the deduction of any reasonable amount(s) due and payable by the Lessee to the Lessor under the terms of this Rent.
- c. Upon expiry or early termination of this Rent in accordance with the terms hereof, the Parties mutually agree that Security Deposit shall be explicitly adjusted for the Rent of notice period including, any other payments, charges, taxes, payment for utilities, arrears of Rent to the Premises, with normal wear and tear exempted, due to the Lessor.
- d. Any payments due to be paid by the Lessor or the Lessee, as the case may be, after adjustment of the Security Deposit, shall be remitted by the payable Party to the receiving Party at the time of handover of the Premises by the Lessee.
- e. Notwithstanding anything to the contrary, in the event that the Lessor, halts in any manner whatsoever, the processes as stated above including peaceful handover of the Premises, the Lessor agrees to pay an amount equivalent to per annum consideration to the Lessee.
- f. Notwithstanding anything to the contrary, if the Lessor fails to refund the Security Deposit within the time prescribed in terms of clause 7(c), the Lessor shall be liable to refund the Security Deposit as per the interest act per annum calculated over the period of delay. Further, in case the obligation to refund the Security Deposit is triggered under Clause 7(d), the Lessee shall be entitled to retain the possession of the Premises without any obligation to pay the Rent until such period the Lessor refunds the Security Deposit as per the interest act calculated over the period of delay, if any, subject to the deduction of any reasonable amount(s) due and payable by the Lessee to the Lessor under the terms of this Rent.

8. Sub Lease

Lessee shall have the right to Sublet or Sub- Lease the Premises or any part thereof, to any affiliates, Associated Entity, Partner Channels, Group Companies, Sister Concern Companies or any entity carrying out business for interest and the benefit of the Lessee, with prior written permission or consent from the Lessor.

9. Utilities

The Utilities including but not limited to electricity, water, air conditioning have been elaborated in Schedule I of this Rent. The monthly electricity usage and water charges related to Premises shall be borne by the Lessee and Lessee will use the electricity for Industrial purpose and pay to the Lessor at actual as per Industrial tariff. The Lessor shall install a separate sub-meter for the industrial electricity power supplied to the Premises.



Premises. It has been specifically agreed that the Lessor would apply for, obtain/arrange the electricity load for Industrial Purpose of NA KW load from LT panel room till DB. Cabling from LT panel to specified location of the Lessee the cost of the cabling & sub meter shall be borne by the Lessee.

10. Representations and Warranties

a. The Lessor makes the following representations and warranties:

- i. The Lessor is a legal entity duly incorporated and validly existing in accordance with the laws of India/The Lessor is an individual.
- ii. The Lessor has obtained all necessary approvals including all internal approvals (if any) required for the execution and performance of this Rent.
- iii. This Rent constitutes a valid, legal and binding obligation of the Lessor enforceable against it in accordance with its terms.
- iv. The execution and performance by the Lessor of any of its obligations under this Rent, does not: (A) conflict with or result in a breach of any of the terms, conditions or provisions of, or constitute a default, or require any consent under, any indenture, mortgage, Rent or other instrument or arrangement to which the Lessor is party or by which it is bound; (B) violate any of the terms or provisions of the Lessor's constitutional documents (if applicable); or (C) violate any provision of Applicable Law.
- v. The Lessor has neither received any correspondences nor is it aware of any threatened or actual suspension, revocation or limitation of Governmental Approvals obtained by it including any Governmental Approvals issued pertaining to the Premises.
- vi. There are no proceedings before any court tribunal or governmental authority in progress or pending against the Lessor in connection with the ownership or otherwise of the Premises.
- vii. The Premises can be used by the Lessee for its business purposes and is fit for such purpose.
- viii. The building and the Premises have been constructed in accordance with Applicable Law. The Lessor has made the building and the Premises fully functional prior to the execution of this Rent in compliance with the Applicable Laws.
- ix. The Lessor has absolute and clear title and ownership over the Premises and unrestricted and unfettered legal and marketable title to the Premises free of any encumbrances.
- x. There is no adverse claim, encumbrances, encroachments, acquisition, requisition or other statutory claims on the Premises.
- xi. There are no outstanding dues on the Premises including but not limited to electricity bill, water bill, maintainance charges etc.
- xii. The Premises is equipped with adequate water, sewage and drainage systems including water inlet and outlet facilities. Fire NOC and applicable provision, OC/sanction drawing/CC, updated commercial property tax.
- xiii. The Lessor shall do, execute and perform all such acts, deeds, other documents and other things (or procure the doing, execution or performance thereof) as the Lessee may from time to time reasonably require for the purpose of implementing the provisions of this Rent including giving full effect to the transactions contemplated by this Rent.



- xiv. The Lessor shall do, make, sign, execute and make available all deeds, documents, permissions, NOC, other necessary documents to assist the Lessee in obtaining licenses with respect to the Premises.
 - xv. The Lessor shall obtain and maintain all Governmental Approvals required under Applicable Law in connection with the construction, occupation and use of the building including the Premises.
- b. The Lessee makes the following representations and warranties:
- i. The Lessee is an entity duly incorporated and validly existing in accordance with the laws of India.
 - ii. The Lessee has full power and authority to enter into this Rent.
 - iii. The Lessee has obtained all necessary approvals including all internal approvals required for the execution and performance of this Rent.
 - iv. This Rent constitutes a valid, legal and binding obligation of the Lessee enforceable against it in accordance with its terms.
 - v. The execution and performance by the Lessee of any of its obligations under this Rent, do not: (A) conflict with or result in a breach of any of the terms, conditions or provisions of, or constitute a default, or require any consent under, any indenture, mortgage, Rent or other instrument or arrangement to which the Lessee is party or by which it is bound; (B) violate any of the terms or provisions of the Lessee's constitutional documents; or (C) violate any provision of Applicable Law.

11. Covenants and Obligations

- a. The Lessor covenants and is obliged to do the following at all times during the subsistence of this Rent.
- i. Facilities
- A. The Lessor shall provide electrical wiring up to the main distribution board on the Premises and shall also be responsible for the installation (including the cost of such installation) of the electrical fittings, cabling etc both within and outside the Premises.
 - B. The Lessor shall provide for regular supply of potable water and adequate water supply for the firefighting/measures fire extinguisher to the Premises.
 - C. The Lessor shall maintain at all times during the Lease Term and, if applicable, the Extended Term comprehensive insurance policies for an adequate amount of coverage in respect the building, the Premises and the assets of the Lessor.
 - D. The Lessor shall allow the Lessee to use any service provider of its choice to provide telecommunication services required by it at the Premises and shall allow the Lessee and any service provider chosen by it to lay their cables/wiring within or outside the building.
 - E. The Lessor confirms that the building, Common Areas and service shaft for firefighting on each floor of the building (**Fire Areas**) have been provided with a fire fighting and fire detection system and necessary equipment in accordance with Applicable Law. The Lessor shall always be responsible to maintain such system and equipment in respect of the Fire Areas in functional and efficient working condition throughout the Lease Term and, if applicable, the Extended Term.



- F. The Lessor shall maintain and repair building's exterior and interior public portions, Common Areas, structure, foundation and roof, and plumbing, electrical, heating, ventilating, air conditioning and other mechanical systems in accordance with Applicable Law. In no event shall capital repairs or replacements be charged to the Lessee. Further, the Lessor shall at all times during the subsistence of this Rent undertake regular preventive maintenance of all electro-mechanical equipment provided however that in the event such preventive maintenance may result in disruption of the Lessee's day to day business activities, the Lessor shall give at least one week written notice to the Lessee prior to commencing such preventive maintenance. However, in case the Lessor fails to undertake the repair work, the Lessee shall have the right to have such repairs done on its own and to deduct the costs of such repairs from the Rent payable to the Lessor.
- G. The structural elements of the building and the building systems shall always be kept in good repair and fit for the purpose during the subsistence of this Rent.
- H. The Lessor shall provide twenty-four (24) hours running water necessary water and sewerage connections for the Premises and there will be no additional charges for such facilities.
- I. The Lessor shall provide uninterrupted power backup for the rightful enjoyment and carrying out business by the lessee.

ii. Use and enjoyment

- A. The Lessee shall, subject to making timely payments under this Rent and compliance of the terms and conditions of this Rent during the Lease Term and if applicable, the Extended Term, have: (i) quiet, peaceful and exclusive use, enjoyment and possession of the Premises; and (ii) use and enjoyment of the Premises along with Common Areas, without any interference from or disturbance by the Lessor or any person claiming under the authority or in the name of the Lessor.
 - B. The Lessee's employees, authorized representatives, visitors, guests, agents, contractors, vendors etc. shall have absolute and unrestricted use of and access to the Premises, the Common Areas and the car parking areas during normal working hours with fully operational infrastructure and facilities including lifts, electricity, water, air-conditioning, etc.
 - C. The Lessee shall have the right to hold, use and enjoy the Premises, wholly or in part, by itself or through or along with any subsidiary or holding or affiliate of the Lessee throughout the Lease Term and the Extended Term, if any.
 - D. The Lessor shall not lease, license or otherwise enter into any Rent or arrangement with respect to any other premises in the building to any Person that is engaged in a business that competes with or undertakes a business that competes with or is similar to the business of the Lessee.
 - E. The Lessee has the rights to assign/sub-lease/sub-let the said premise full or in part to its business associates or group company or subsidiary where the Lessee has business interest with permission of the Lessor.
- b. The Lessee covenants and is obliged to do the following at all times during the subsistence of this Rent:



- i. The Lessee agrees and undertakes to pay to the Lessor, the Rent under this Rent in accordance with the terms hereof.
- ii. The Lessee agrees that it shall use the Premises only for use as agreed to in this Rent and shall not carry on or permit to be carried on in the Premises or in any part thereof any activities which are or are likely to be unlawful, obnoxious or cause nuisance or disturbance to other tenants/occupants in the building. Further, the Lessee shall procure all licenses necessary and renew them from time to time for the smooth running of its business.
- iii. The Lessee shall carry out all minor day-to-day repairs within the Premises required to ensure maintenance and upkeep of the Premises.

12. Anti-Bribery and Anti-Corruption

- a. Both the Party/ies undertake that neither them nor any of their affiliates, director/s, officer/s, employee/s or any other person acting on their behalf has and will, in the course of their actions for, or on behalf of such Party/ies, engage in any form of bribery, corruption, or unethical practices under this Rent. Both the Party/ies further acknowledge and undertake that they have not undertaken any act in furtherance of an offer, promise, or authorization of any direct or indirect unlawful payment or benefit to any bribe, rebate, payoff, influence payment, kickback, etc. under this Rent.
- b. Both the Party/ies shall promptly report any known or suspected instances of bribery or corruption to the other Party/ies.
- c. In the event any of the Party/ies or any of its employees or officers are found/proved to be involved in any act of bribery or corruption, including colluding with any employee or officer of the other Party, the affected Party reserves the right to terminate this Rent with immediate effect. Termination under this clause shall be without prejudice to any other rights or remedies the affected Party may have under applicable laws.

13. Lessor's Right to Enter the Premises and Notice

The Lessor through its duly authorized representative shall have the right from time to time, to enter the Premises during the normal working hours on any working day after providing the Lessee at least two (2) days prior written notice for the purpose of inspecting the Premises and to assess the Lessee's compliance with the provisions of this Rent. During such visit, the Lessee shall have the liberty to have its representative accompany the Lessor's representative and the Lessor's representative shall carry an appropriate identification during such visits.

14. Sale

- a. The Lessor shall have the right to transfer its leasehold rights over the Premises in part or in full to any third party(ies) (**New Owners**) anytime during the term of this Rent and the Lessee shall not object to such transfer. However, the Lessor shall ensure that such New Owners shall be bound by and adhere to all the terms and conditions of this Rent to ensure uninterrupted and peaceful possession of the Premises by the Lessee for the term of this Rent.



- b. In such event the new owner have to sign the fresh Rent with Lessee on the same term and condition all the 100% charges to words the signing the new Rent have to be borne by the New Owner/new Lessor.

15. Termination

a. Termination by Lessee

- i. The Lessee shall have the right to terminate this Rent for its convenience without cause at any time by giving notice to the Lessor of such days as elaborated in Schedule I.
- ii. Notwithstanding anything contained in this Rent, the Lessee shall have the right to terminate this Rent with immediate effect, if:
 - A. The Lessor commits a material breach of this Rent (such material breach, if capable of cure, has not been cured by the Lessor within a cure period of thirty (30) days upon receipt of a notice to this effect from the Lessee to the Lessor); or
 - B. The Premises being rendered unfit for use or occupation by the Lessee due to any willful act or negligence of the Lessor or violation of any Applicable Law by the Lessor;
 - C. The Lessor is adjudged to be insolvent, bankrupt or is the subject of any proceedings relating to its liquidation, dissolution, its insolvency or for the appointment of a receiver or similar officer for it, makes an assignment for the benefit of all or substantially all of its creditors or enters into an Rent for the composition, extension, or readjustment of all or substantially all of its obligations;

b. Termination by Lessor

The Lessor shall have the option to terminate this Rent in any of the following events only and not in case of any other event:

- i. If the Lessee fails to make payment of the Rent or part thereof or of any other amount due and payable hereunder for a continuous period of two (2) months and such failure continues for a period of thirty (30) days after receipt of the Lessor's notice requiring payment of such Rent or outstanding amounts; or
- ii. If the Lessee has been declared to be insolvent or bankrupt in an insolvency or bankruptcy proceedings by a court of competent jurisdiction in India or it goes into liquidation or enters into a composition with its creditors or ceases to carry on a substantial part of its business except for the purposes of and followed by a reconstruction, amalgamation, reorganization, merger or consolidation required or approved by Applicable Law or otherwise; and
- iii. If the Lessee commits a material breach of this Rent (which breach, if capable of cure, has not been rectified by the Lessee within a cure period of thirty (30) days upon receipt of a notice to this effect from the Lessor to the Lessee.

c. Consequences of Termination

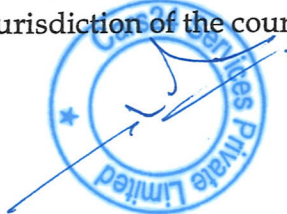
Upon termination of this Rent in terms of clauses 13, the Parties agree that:



- i. The Lessor shall refund the Security Deposit to the Lessee in accordance with the provisions of clause 7, as the case may be. Further, the Lessee shall vacate the Premises and handover the possession of the Premises on "as is where is" basis to the Lessor. Nothing in this sub-clause shall restrict the Lessee's right to remove improvements/renovations, if any, made to the Premises including any improvements done, Fit-outs installed including any furniture, fixtures, fittings and such other items installed by the Lessee prior to handover of the Premises.
- ii. Notwithstanding anything contained in this Rent, the Lessee shall have the right to hold the keys of the Premises until the Security Deposit is not refunded to the Lessee in its entirety, without incurring any Rent. In the event, the Lessor does not refund the Security Deposit to the Lessee as per the terms of this Rent, without prejudice, the Lessee shall have the right to initiate legal proceedings against the Lessor within seven (7) days of receipt of a notice in this regard.
- iii. Notwithstanding anything contained in this Rent, during the Term of this Rent or within the notice period at the time of expiry or early termination of the Rent, the Lessor, in any manner whatsoever, shall not block any business operations of the Lessee, (including but not limited to movement of Lessee's assets, etc.).
- iv. In case of default by the Lessor under clause iii above, the Lessor agrees to indemnify the Lessee from any damages, claims, penalties or other losses resulting from such breach of the Lessor. For the purpose of this clause, Lessee shall also be entitled to liquidated damages as mentioned under clause 7(d) and any other remedies available at law or in equity.
- v. The Parties shall jointly endeavor to undertake settlement of accounts, fifteen (15) days prior to the last date in case of early expiry or termination of this Rent, wherein the Parties shall jointly work out the following:
 - A. Amounts payable to Lessor and other utility bills due and payable on the date of full and final settlement by the Lessee;
 - B. Assessment of damage (if any) to Premises attributable to Lessee.

16. Arbitration and Governing Law

- a. All disputes, differences and/or claims arising out of, or relating to, or in connection with this Rent or the breach, termination or validity hereof shall be referred to Sole Arbitrator, as per the concert of the both parties. the Arbitration and Conciliation Act, 1996. The place of the arbitration shall be Gwalior, India. The award given by the Arbitrator shall be final and binding on both the Parties. The language of the arbitration proceedings and award shall be English.
- b. Subject to the above, this Rent and any disputes arising hereunder shall be governed in accordance with the laws of India without regard to principles of conflict of laws. The Parties hereto consent to and agree to submit to the exclusive jurisdiction of the courts of Gwalior, India.



17. Relationship

- a. No provision of this Rent shall be deemed to constitute a partnership or joint venture between the Parties.
- b. No provision of this Rent shall constitute either Party as the legal representative or agent of the other, nor shall either Party have the right or authority to assume, create or incur any liability or any obligation of any kind, express or implied, against, or in the name of, or on behalf of the other Party.
- c. No person employed by either Party for the performance of its obligations under this Rent shall be deemed to be an employee of the other Party. If applicable, each Party shall be responsible for the payment of all salaries, employment benefits, etc. with respect to all persons who are engaged by it for the performance of any obligations under this Rent and such person shall not be entitled to any salary benefit or any other claim whatsoever from or against the other Party.

18. Notice

- a. Save as otherwise specifically provided in this Rent, any notice, demand or other communication to be served under this Rent may be served upon to the Lessor hereto only by registered speed post acknowledgement due or delivering the same by courier to the Lessor to be served at its address as elaborated in Point 3, under, Schedule I, or at such other address or number as it may from time to time notify in writing to the Lessee hereto.
- b. Any notice, demand or other communication to be served under this Rent may be served upon to the Lessee hereto only by registered speed post acknowledgement due or delivering the same by courier to the Lessor to be served at 7 th Floor, Tower C, SAS Towers, Sector 38, Gurugram Haryana 122001, or at such other address or number as it may from time to time notify in writing to the Lessee hereto.
- c. A notice or demand served by registered speed post acknowledgement due or courier shall be deemed duly served forty-eight (48) hours after posting and in proving service of the same it will be sufficient to prove, in the case of a letter, that such letter was sent properly by registered post, addressed and placed in the post, in the case of courier, that the letter was addressed and delivered to the courier company.

19. Force Majeure

- a. If the building including the Premises or any part thereof be destroyed or damaged by fire (not caused by any willful act or negligence of the Lessee), earthquake, tempest, flood, lightning, atmospheric disturbance, or any other act of God, riots, terrorism, violence of any army or mob or enemies of the country or by any other irresistible force, or the orders of any statutory authority except such orders which arise out of a default by the Lessor of its lawful obligations and/or the Lessee is unable to use the Premises due to any act of god including by but not limited to epidemic, riot, terrorism, embargo etc. (**Force Majeure**), the Lessee shall have the option to terminate this Rent (subject to the continuance of the Force Majeure period beyond thirty (30) days) immediately and Lessor shall refund to the Lessee the Security Deposit amount in accordance with the terms of this Rent.



- b. The Lessee may, however, at its sole option, without determining this Rent, temporarily vacate the whole or such portion of the Premises to enable the Lessor to carry out repairs in order to restore the Premises to its original condition (reasonable wear and tear excepted) and in such event, the Lessee shall not be liable to pay the Rent and other charges for the Premises and for such period till the Lessor carries out the repairs in the Premises and/or till such force majeure situation lasts. Provided that, where the Premises (whole or a portion thereof) has been repaired to normalcy by the Lessor subsequent to the Force Majeure event, the Lessor shall intimate the same to the Lessee along with the cut-off date by which the Lessee may resume its operations from the said Premises. Provided further that where a notice as above has been provided by the Lessor to the Lessee, the Rent for the Premises shall resume from the cut-off date as specified in the notice only if the Lessor hands over the possession of the Premises to the satisfaction of the Lessee and the Lessee shall be liable to pay Rent in accordance with the terms and conditions of this Rent.

20. Indemnification

- a. The Lessor shall indemnify the Lessee, its directors, officers, employees and agents (**Indemnified Persons**) against all actions suits and proceedings and all claims, demands, damages, losses and expenses which may be incurred or suffered by or caused to the Indemnified Persons by reason of any direct or indirect breach, default, contravention, non-observance or non-performance by the Lessor of the provisions of this Rent or Applicable Law including from:
- i. the representation and warranties of the Lessor being untrue or misleading;
 - ii. breach of the covenants, Rents or terms of this Rent; and
 - iii. any claims by any person or government authority regarding the use and occupation of the Premises by the Lessee.

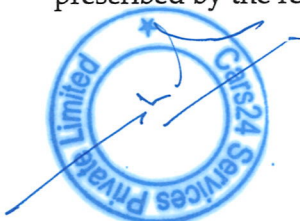
21. Miscellaneous

a. Costs

- i. Save as expressly otherwise provided in this Rent, each of the Parties hereto shall bear its own legal, accountancy and other costs, charges and expenses connected with the negotiation, preparation and implementation of this Rent, provided that the costs in respect of stamp duty and notarization/registration of this Rent shall be borne by both the Parties equally. For avoidance of doubt, it is clarified that the Lessor shall be solely responsible for notarization/registration of this Rent.
- ii. In addition to the aforesaid, all costs and expenses for de-registration/termination of this Rent shall be solely borne by the Lessor.

b. Property and Municipal Tax

The Lessor agrees that all past, present and future taxes including property tax, municipal tax, governmental dues and any other taxes, levies, cesses, charges or dues with respect to the Premises during the Lease Term and/or Extended Term shall be borne by the Lessor. However, in the event the Lessor fails to pay such taxes and dues within the time prescribed by the relevant authority, the Lessee shall have the right and not obligation to



make such payments on its own and to deduct the amounts from the Rent payable to the Lessor.

c. Waiver

- i. The failure of either Party to enforce, in any one or more instances, performance of any of the terms, covenants or conditions of this Rent shall not be construed as a waiver or a relinquishment of any right or claim granted or arising hereunder or of the future performance of any such term, covenant, or condition, and such failure shall in no way affect the validity of this Rent or the rights and obligations of the Parties hereto. The Parties acknowledge that a waiver of any term or provision hereof may only be given by a written instrument executed by each Party hereto.
- ii. Any express waiver by either Party of any default by the other Party shall not constitute a waiver of any other default by the defaulting Party or a waiver of any of the non-defaulting Party's right.

d. Entire Rent and Modification

- i. This Rent and the Schedules constitute the entire Rent between the Parties and revokes and supersedes all previous understandings and Rents between the Parties concerning the matters covered herein whether written, oral or implied including the LOI.
- ii. The terms and condition of this Rent shall not be changed or modified except by written amendments duly agreed between the Parties.

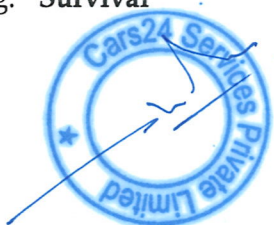
e. Reinstatement

On termination of this Rent or expiry of the lease period, whichever is earlier, the Lessee shall vacate the Premises and hand over the possession of the Premises to the Lessor. The Parties agree that prior to the Lessee vacating and handing over the Premises to the Lessor, the Lessor shall enter into good faith discussions with the Lessee to purchase all or any of the Fit-outs installed by the Lessee. In the event the Lessor does not agree to purchase any/all of the Fit-outs installed by the Lessee, Lessee shall have the right to remove the Fit-outs and improvements/renovations made to the Premises by the Lessee (other than the Fit-outs purchased by the Lessor).

f. Severability

Any provision of this Rent which is prohibited, unenforceable or is declared or found to be illegal, unenforceable or void in any jurisdiction shall, as to such jurisdiction, be ineffective only to the extent of such prohibition or unenforceability without invalidating the remainder of such provision or the remaining provisions of this Rent or affecting the validity or enforceability of such provision in any other jurisdiction. If any such invalidity substantially affects or alters the commercial basis of this Rent, the Parties shall negotiate in good faith to amend and modify the provisions and terms of this Rent as may be necessary or desirable in the circumstances to achieve, as closely as possible, the same economic or commercial effect as the original provisions and terms of this Rent.

g. Survival



All provisions which by their nature are intended to survive termination of this Rent by the Parties shall survive the termination or expiry of this Rent.

h. Compliance with Applicable Law

The Lessor undertakes to comply with all applicable laws, statutes, regulations, directions, orders or standards from any governmental/statutory body applicable to the Lessor. Liquidated damages will be applicable on the Lessor. The Parties hereby agree that Lessee shall have the right to deduct an amount equivalent to per annum monthly consideration as liquidated damages from payments due to the Lessor in lieu of commercial loss and legal risk exposure brought on Lessee as a result of such breach by Lessor.

i. Disclaimer

Any changes made to this Rent without approval of Legal Department of the Lessee, shall make this Rent void.

In witness whereof, the Parties hereto have set their hands and seal to these presents on the day, month and the year first above written in presence of the following witnesses:

Signed, Sealed & Delivered

For Cars24 Services Private Limited	For M/S- Swastik Grah Nirman
Shashank Tewari Associate Director -Expansion	RAHUL GUPTA Digitally signed by RAHUL GUPTA Date: 2024.12.16 18:02:54 +05'30'
	Rahul Gupta Lessor



**Schedule I
Commercials**

1.	Execution Date	16 th December,2024
2.	Rent Start Date	12 th October,2024
3.	Lessor	M/s Swastik Grah Nirman company incorporated under the Companies Act, 1956/2013 having its registered office at MIG-247,Madhav Nagar, Gwalior (hereinafter referred to as "Service Provider", which expression shall, unless it be repugnant to the meaning and context thereof, be deemed to include its successors and permitted assigns) of the other part.
4.	Address of Premises	Neo Meridian Building, Behind New Collectorate Building, Gwalior. Total carpet Area 4800sq.ft. approx. Number car parking 25nos
5.	Lease Term	24(Twenty four) months
6.	Extended Term	As per discretion of the Lessee
7.	Date of LOI	NA
8.	Rent	Rs. 34,460/- (Rupees Thirty Four Thousand and Four Hundred Sixty only),
9.	Rent Free Period	NA
10.	Rent Escalation	Rent Escalation will be calculated at a rate of 5% per year calculated from the Commencement Date, subject to extension.
11.	Security Deposit (SD)	Rs.54,000/- (Rupees Fifty Four Thousand only) duly paid and acknowledged by the Lessor.
12.	Advance Rent	NA
13.	Termination Notice by Lessee to Lessor	90(ninety) days
14.	Maintainance	The Lessor shall at no additional charge or any kind provide operation and maintenance services in respect of the Premises including operation and maintenance services with respect to the Common Areas, facilities and the Common Equipment etc.
15.	Electricity	i. The Lessor shall ensure installation of a new electricity meter in the Premises issued by the concerned electricity department or by a private distributor authorized to issue electricity meters, with the fix load/electricity capacity of 6 Kw. Such electricity load shall be available at no additional cost or deposit. The Lessor shall ensure that there is no separate sub-meter installed in the Premises. for new meter(s) being installed, to be deleted if not applicable) ii. The Lessor shall provide the Lessee with an electricity capacity of 6 Kw (including for air-conditioning) for the Premises. On the date of execution of this Rent. for existing meter(s) being provided, to be deleted if not applicable)



		iii. The rates charged to the Lessee for electricity shall be as per the readings of the separate meter/sub-meter to be provided by the Lessor. The rates charged shall be at actuals based on cost of inputs and operation charges plus taxes. iv. The Lessee shall not be liable for any charges payable for electricity consumption prior to Commencement Date or for amounts outstanding against the Lessor or any other party as on the Execution Date. v. The readings of the electricity meter on the execution date is as follows: a. Last electricity meter reading- NA b. Meter Number/CA Number- NA
16.	Power Back-Up	NA
17.	Water	a. Last water meter reading- NA b. Meter Number/CA Number-NA
18.	Air Conditioning	Not Applicable
19.	Other Utilities/Facilities	(if any)
20.	Fit-Outs And Lessor Scope Of Work	Annexed as Schedule III
21.	Signage	The Lessor shall provide sufficient branding/signage space as required by Lessee. The Lessee may avail all the existing and suitable space for its signage and branding purposes at no extra cost to the Lessor at the Premises. The Lessee shall have access to install a flag pole branding and standees right outside the Premises. Additionally the Lessee shall have access to install a glow sign board in front of the Premises at a mutually agreeable place.

